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LINE 2

24-CIV-07699

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS
LIFT ENRICHMENT, INC.

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED
LIFT ENRICHMENT, INC. LEONARD EMMA
MARYAM MALEKI

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

CONTINUED FROM 6/9/2026 AND 6/16/2026 AT DEFENDANT'S REQUEST

TENTATIVE RULING:

The court repeats the tentative ruling posted for the June 9, 2026 hearing. Defendant contests the tentative ruling.

Plaintiff Nina Bogdanoff's Motion for Leave to File a Second Amended Complaint is GRANTED.

In this case, on December 6, 2024, plaintiff Bogdanoff filed a wage and hour class action complaint against defendant Lift Enrichment, Inc., which included an overtime claim. On February 10, 2025, plaintiff filed a first amended complaint, which added a Private Attorney General Act (PAGA) claim and deleted the overtime claim because she did not have standing to assert it. On March 20, 2025, defendant answered the first amended complaint. Now, plaintiff seeks to file a second amended complaint to add two individuals, Tyler Fleeman and Nicky Grier-Fairley, as class and PAGA representatives and to add a cause of action for failure to pay overtime. Defendant opposes arguing that the proposed new plaintiffs did not submit their PAGA notices until after the filing of the complaint and thus they cannot claim the benefit of the December 6, 2024 filing date.

The motion was originally scheduled to be heard on May 6, 2026, but the court had question on whether the two new proposed plaintiff could revive a claim that was originally pled in the original complaint but then omitted from the operative pleading. The parties submitted supplemental briefing.

Public policy considerations favor the use of the court's discretion to grant a party's request for leave to amend a pleading, as reflected in California case law. For example, our Supreme Court has stated that "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–27.)

Accordingly, in deciding that the court below had abused its discretion in denying such a request, the Court of Appeal later explained that:

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.

(*Morgan v. Superior Ct. of Cal. in & for Los Angeles County* (1959) 172 Cal.App.2d 527, 530 (collecting citations).) Recently, two different Courts of Appeal have reversed a trial court who refused leave to amend after a demurrer, even where it appeared doubtful that plaintiff could state a cause of action. (*Black v. Los Angeles County Metropolitan Transportation Authority* (2025) 116 Cal.App.5th 677; *Sproul v. Vallee* (2025) 116 Cal.App.5th 285.) The same public policy considerations apply to this motion to amend.

In this case, both parties agree that the law liberally grants motions to amend, but disagree on whether legally the new proposed plaintiffs may join this action and obtain the benefit of Bogdanoff's PAGA notice, which was much earlier than the date of Fleeman's and Grier-Fairley's PAGA notice.

As to the court's question, the omission of the overtime claim in the amended complaint does not operate as a bar to reviving the cause of action because the dismissal is without prejudice. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1142-1143.) Thus, the fact that the overtime complaint was omitted from the amended complaint does not by itself bar the revival of the claim.

A noted practice guide explains the requirements for a complaint to relate back. "For an amended complaint to relate back to the original complaint as to parties named in it by their true names, it must:

- — be based on the 'same general set of facts' as the original; and
- — seek recovery against the same defendants for the 'same injuries'; and
- — refer to the 'same incident'—i.e., the 'same accident' caused by the 'same offending instrumentality.' [*Barrington v. A. H. Robins Co.* (1985) 39 C3d 146, 150, 216 CR 405, 407; *Norgart v. Upjohn Co.* (1999) 21 C4th 383, 408-409, 87 CR2d 453, 471-472; *Fix the City, Inc. v. City of Los Angeles* (2024) 100 CA5th 363, 374, 319 CR3d 119, 126; see *Pointe San Diego Residential Comm., L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 CA4th 265, 277, 125 CR3d 540, 550—'critical inquiry is whether the defendant had adequate notice of the claim based on the original pleading,' and 'in applying the relation-back analysis, courts should consider the strong policy in this state that cases should be decided on their merits' (internal quotes omitted); *Hutcheson v. Sup.Ct. (UBS Fin'l Services, Inc.)* (2022) 74 CA5th 932, 940, 290 CR3d 60, 66]"

(*Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG, June 2026 update) § 6:735 (Rutter Guide).)

"It is the sameness of the facts rather than the rights or obligations arising from those facts that is determinative. Thus, amendments alleging a new theory of liability against the defendant relate

back to the original complaint, so long as based on the same set facts [sic] previously alleged. [*Amaral v. Cintas Corp. No. 2* (2008) 163 CA4th 1157, 1199-1200, 78 CR3d 572, 606].” (Rutter Guide, *supra*, §6:736.)

“But a new plaintiff cannot be joined after the statute of limitations has run where plaintiff seeks to enforce an independent right or to impose greater liability upon the defendant. In such cases, the amended complaint does not relate back to the filing of the original. [*Bartalo v. Sup.Ct. (Rosman)* (1975) 51 CA3d 526, 533, 124 CR 370, 374; *Quiroz v. Seventh Ave. Ctr.* (2006) 140 CA4th 1256, 1278, 45 CR3d 222, 238 (citing text)]” (Rutter Guide, *supra*, § 6:755.)

In this case, defendants argues that *Hargrove v. Legacy Healthcare, Inc.* (2022) 80 Cal.App.5th 782 (*Hargrove*) bars plaintiff’s second amended complaint, but *Hargrove* supports amendment. The *Hargrove* court following *Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932,939-940, held a new plaintiff “may substitute into this action, and her PAGA claim may relate back to the original complaint if she meets PAGA’s prerequisites (standing, notice, & statute of limitations) and the amended complaint is able to relate back to the original complaint (i.e., it rests on the same general set of facts, involves the same injury, & involves the same cause of injury).” (*Hargrove*, at p. 791.) The reason that the new plaintiff could not substitute into the action in *Hargrove* was because she did not work at the defendant company during the same time period as the original plaintiff and thus did not “rest on the same general set of facts or involve the same injury.” (*Id.* at p. 793.) In this case, in contrast as alleged, all three plaintiffs were employed by defendants during all times relevant to the complaint. (SAC, ¶¶ 1-3.)

The allegations of the FAC and SAC arises from the same set of facts and seeks recovery against defendants for the same injuries arising from defendants’ employment policies and practices. The FAC alleges that “Plaintiffs and Class Members were not properly paid for all hours that they spent working” and “Defendants failed to pay Plaintiff and Class Members for all hours worked.” (FAC, ¶¶ 13, 18; see also ¶¶ 6, 26(4), 62, Prayer (5), all referring to failure to pay for “all hours worked”.) These allegations in the FAC were sufficient to put defendants on notice that they should prepare a defense based on an alleged failure to pay all hours spent working.

The case of *Estrada v. Royalty Carpet Mills, Inc.* (2022) 76 Cal.App.5th 685 (*Estrada*) is instructive. In *Estrada*, plaintiffs sued a company which had various facilities, three of which were relevant to the lawsuit. (*Id.*, at p. 698.) There were two original named plaintiffs, each of whom was from a different facility, and they sought leave to amend their SAC to add 11 new named plaintiffs, some of whom worked at the third facility, as well as an allegation that the third facility “had a unique policy that prevented employees from leaving the facility during meal periods.” (*Id.* at p. 699.)

The *Estrada* court first found that the original named plaintiffs’ proposed class covered employees from the third facility, and that the proposed class in the TAC “was substantially the same as the SAC.” (*Estrada, supra* 76 Cal.App.5th at p. 717.) The court then found as follows as to the new claim:

[T]he Porterville meal period claim alleged in the TAC is based in the same facts, injury, and instrumentality as the SAC's meal period claims: Royalty failed to provide its employees at Dyer, Derian, and Porterville with proper meal periods and failed to provide premium pay under section § 226.7. The exact nature of the noncompliant meal periods at Dyer and Derian (untimely meal periods) was different than Porterville (on-premises meals). But these two theories are still grounded in plaintiffs' overall allegations that Royalty was not providing its employees at the three facilities with compliant meal periods and was not providing premium pay over the same period.

(*Estrada*, *supra* 76 Cal.App.5th at p. 718.) Similarly, here, the proposed SAC's overtime claim is grounded in plaintiff's overall claim that defendants failed to properly pay Plaintiff and Class Members for all hours spent working. As the *Estrada* court held, "[t]here was sufficient information in the SAC 'to permit [the defendant] to gather and preserve the relevant materials and begin to conduct discovery and prepare a defense to the claims that were later refined and augmented in the amended complaints.' " (*Id.* at 718-719 [citing *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 278.])

As for the proposed plaintiffs, the *Estrada* court found that "[s]ince the on-premises meal policy claim in the TAC relates back to the SAC, it was permissible for plaintiffs to amend the SAC and add Porterville employees with standing to bring it." (*Estrada*, *supra* 76 Cal.App.5th at p.719.)

Regarding the PAGA claims, both proposed plaintiffs fell within the definition of the class as stated in the FAC, and both gave the LWDA notice of their claims prior to the filing of this motion, therefore they have exhausted administrative remedies and their claims relate back.

Hutcheson v. Superior Court (2022) 74 Cal.App.5th 932 (*Hutcheson*), which defendants attempt to distinguish, also supports amendment. In *Hutcheson*, an employee sued his employer seeking PAGA remedies on behalf of aggrieved employees, and a second employee sued the same employer under PAGA about a year later. (*Hutcheson* at 936-937.) The employee who filed the second lawsuit sought to intervene in the first employee's lawsuit and replace him, but the parties disagreed over whether the second employee's claim would relate back to the time of filing of the first lawsuit. (*Id.* at p. 937.)

The court found that "[a]t the time [the first employee] filed his original complaint, in February 2018, [the second employee] met the standing requirements for an aggrieved employee under section 2699, subdivision (c). That is because [the second employee] was a former employee of UBS, and the alleged violations had also been committed against him." (*Hutcheson*, *supra*, 71 Cal.App.5th at p. 941.) The court concluded that "[t]he substitution of [the second employee] for [the first employee] does not expand the scope of the original complaint filed by [the first employee]." (*Ibid.*)

Here, the FAC defined the class as "[a]ll persons employed by Defendants in the State of California in a nonexempt position who performed work for Defendants at any time within four years prior to the date of the filing of this Complaint." (FAC, ¶ 24.) The proposed SAC alleges

as to both proposed plaintiffs: “During all times relevant to this Complaint, Plaintiff was employed by Defendants as a non-exempt hourly employee.” (Proposed SAC, ¶¶ 1-3.) As in *Hutcheson*, the proposed plaintiffs therefore “stood to recover civil penalties if [Plaintiff Bogdanoff]’s case were proved.” (*Hutcheson, supra*, at 941.) And as in *Hutcheson*, both proposed plaintiffs here gave the LWDA notice well before the filing of this motion and the proposed SAC. (See Proposed SAC, ¶¶ 13-14.)

Since the addition of the overtime claim and the proposed plaintiffs do not improperly expand the scope or nature of the claims, there is no prejudice as the law defines it by the filing of the proposed SAC. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489 [change in legal theory not prejudice]; Rutter Guide, *supra*, § 6:656 *et seq.*) Further, the filing of this motion was not untimely so as to cause prejudice to defendants. Plaintiff filed her initial complaint on December 6, 2024 and her FAC on February 10, 2025. The case was then stayed from March 20, 2025 to September 5, 2025 based on defendants’ request for an early evaluation conference, and proposed Plaintiffs submitted PAGA notice in August and September 2025, respectively. Plaintiff informed defendants of her desire to amend the FAC and add the proposed plaintiffs and overtime claim by December 2025. (Declaration of Leonard Emma ISO Leave to Amend, filed Feb. 27, 2026, ¶ 6.)

The amended complaint is not deemed filed. It shall be filed and served within five court days of notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH

GERALD H SCHER

KILISTINA D FAKAHAUA PETELO

MOTION FOR AN ORDER TO COMPEL PLAINTIFFS GEORGINA KOCH'S AND PENELOPE KOCH'S (A MINOR) BY AND THROUGH HER GUARDIAN AD LITEM, GEORGINA KOCH, RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET NO. ONE

TENTATIVE RULING:

Defendant Valco Cincinnati, Inc.'s Motion for an Order to Compel Plaintiffs Georgina Koch's and Penelope Koch's Further Responses Requests for Production, Set No. One, is GRANTED.

The party to whom an inspection demand is directed must provide a verified response within thirty days service. (Code Civ. Proc., § 2031.240, subd. (a), § 2031.260, subd. (a).) If a party to whom an inspection demand is directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (*Id.*, at § 2031.300, subds. (a), (b).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first sets, respectively, of inspection demands on Plaintiffs Georgina Koch and Penelope Koch. (Mar. 23, 2026 Motion to Compel Responses, pp. 8–79 ("Henry Decl."), ¶ 2, exh. A.) Neither have provided a timely response. (*Id.*, at ¶¶ 5, 9.)

Accordingly, the motion is GRANTED. Georgina Koch and Penelope Koch shall each serve a separate code-compliant response without objections to the first set of requests for production propounded to them, respectively, by Valco no later than twenty (20) days after service of written notice of entry of the formal order.

No sanctions were requested and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Valco Cincinnati, Inc. shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.
